

Other kinds of liability in Tort

OTHER KINDS OF LIABILITY IN TORT

1. **NERVOUS SHOCK-** It is not however to be taken that every nervous shock occasioned by negligence and producing physical injury to the victim gives cause of action. There is at least one limitation if the nervous shock occasioned by negligence was to give a cause of action it must be a shock which arises from a reasonable fear of immediate personal injury to oneself.

It is of recent origin. It provides relief when a person may get a physical injury not by impact e.g., by stick, bullet or sword but merely by a nervous shock through what has been seen or heard.

2. **INNUENDO-** Sometimes defamation is not apparent or prima facie. The word is derived from innuere, the Latin word that means to nod forward. Words that are considered as innocent in the first impression, have to be proved defamatory by the plaintiff. The latent meaning of the words in the statement that is directed to the plaintiff has to be explained by the plaintiff. When the plaintiff relies on the ordinary meaning of the statements without referring to any special circumstances and pleads the meaning which according to him is the natural meaning, such a plea is called pleading innuendo. The word 'innuendo' in law basically means "an indirect hint."
for e.g., the statement that a lady has given birth to a child is defamatory when the lady is unmarried.

Composite Negligence

3. When the negligence of two or more persons results in the same damage there is said to be 'Composite negligence' and the persons responsible for causing such damage are known as 'composite tortfeasors or independent tortfeasors'

Unlike in England the distinction between joint tortfeasors and independent tortfeasors is not of much relevance in India. The term 'Composite negligence' has been used to cover up cases whether they are of negligence by joint tortfeasors.

Nature of liability in case of composite negligence

The liability of the composite tortfeasors is joint and several.

The High Court of MP, Madras, Mysore, Punjab & Haryana, Orissa, Gujarat, Rajasthan and Karnataka have expressed in favour on non-appointment of damages between various composite tortfeasors, with discretion to the plaintiff to enforce the whole of his claim against any of the tortfeasors.

KARNATAKA STATE ROAD TRANSPORT CORPORATION V. KRISHNAN

Two passenger buses brushed each other in such a way that the left hands of two passengers travelling in one of these buses were cut off below the shoulder joint.

Held – The case is clearly of composite negligence. Hence the drivers of both the buses are jointly and severally liable to pay the compensation.